might become relevant at some amorphous point in the future was "unprecedented and unwarranted." The court's refusal to accept the government's definition caused not a few legal scholars to interpret the ruling as casting doubt on the legitimacy of all government bulk-collection programs predicated on this doctrine of future relevance. In the wake of this opinion, Congress passed the USA Freedom Act, which amended Section 215 to explicitly prohibit the bulk collection of Americans' phone records. Going forward, those records would remain where they originally had been, in the private control of the telecoms, and the government would have to formally request specific ones with a FISC warrant in hand if it wanted to access them.

ACLU v. Clapper was a notable victory, to be sure. A crucial precedent was set. The court declared that the American public had standing: American citizens had the right to stand in a court of law and challenge the government's officially secret system of mass surveillance. But as the numerous other cases that resulted from the disclosures continue to wend their slow and deliberate ways through the courts, it becomes ever clearer to me that the American legal resistance to mass surveillance was just the beta phase of what has to be an international opposition movement, fully implemented across both governments and private sector.

The reaction of technocapitalists to the disclosures was immediate and forceful, proving once again that with extreme hazards come unlikely allies. The documents revealed an NSA so determined to pursue any and all information it perceived as being deliberately kept from it that it had undermined the basic encryption protocols of the Internet—making citizens' financial and medical records, for example, more vulnerable, and in the process harming businesses that relied on their customers entrusting them with such sensitive data. In response, Apple adopted strong default encryption for its iPhones and iPads, and Google followed suit for its Android products and Chromebooks. But perhaps the most important private-sector change occurred when businesses throughout the world set about switching their website platforms, replacing http (Hypertext Transfer Protocol) with the encrypted https (the S signifies security), which helps prevent third-party interception of Web traffic. The year 2016 was a landmark in tech history, the first year since the invention of the Internet that more Web traffic was encrypted than unencrypted.

The Internet is certainly more secure now than it was in 2013, especially given the sudden global recognition of the need for encrypted tools and apps. I've been involved with the design and creation of a few of these myself, through my work heading the Freedom of the Press Foundation, a nonprofit